

Introduction: Wartime crime in Ukraine

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Abstract

This Special Issue examines the multifaceted relationship between war and crime through the lens of the ongoing Russo-Ukrainian war, addressing a longstanding gap in criminological engagement with armed conflict. While international crimes have drawn increasing scholarly attention, the broader criminogenic effects of war: on social order, ‘ordinary’ crime, legal norms, and institutional responses, remain underexplored. The contributions examine how conflict reshapes violence, norms, and illicit markets; how states expand criminal law during wartime; and how transnational criminality and accountability challenges evolve under geopolitical rupture. Bringing together Ukrainian and international scholars, the issue foregrounds domestic expertise, and advances a more inclusive and interdisciplinary criminology of war, while also highlighting the ethical, methodological, and personal challenges of conducting research during an ongoing war. Collectively, the studies demonstrate the need for a broader criminological perspective capable of capturing the wide-ranging and enduring impact of war on crime, justice, and social order.

Keywords

Armed conflict, criminology of war, Ukraine, wartime crime

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Since the end of World War II (WWII), the European continent has experienced two major international armed conflicts: the Yugoslav Wars in the 1990s and the ongoing Russo–Ukrainian War which began in 2014 and escalated to a full-scale invasion of Ukraine in 2022. These armed conflicts not only redefined the geopolitical landscape of Europe but also revealed its enduring potential for large-scale violence, even within a region long assumed to be committed to peace. They also raise urgent questions for criminological inquiry into the nature and consequences of war-related violence.

War has long been recognised as a fundamental force shaping people and cultures, institutions, and legal frameworks (Grayling, 2017; McGarry and Walklate, 2021), creating societal conditions where international crimes, ‘regular’ crimes, and new forms of criminality emerge, merge and transform (Eldridge and Powell, 2024). Yet, in a 2012 introduction to the Special Issue of the *European Journal of Criminology*, ‘Atrocity Crimes and Transitional Justice’, Karstedt and Parmentier expressed their astonishment that international crimes ‘have only recently become the object of systematic criminological research’, given their gravity and scope (2012: 465). This sentiment has also been expressed by others (Hagan et al., 2012: 482; Smeulers and Haveman, 2008). On the one hand, the growing institutional responses since the early 2000s, such as international criminal courts, truth commissions, and other post-conflict justice mechanisms, have fuelled increasing scholarly attention to international crimes (Aydin-Aitchinson et al., 2023), including a limited number of studies on the causes, actors, and consequences of international crimes (see, e.g. Dragojević, 2019; Ferizović, 2020; Neubacher, 2020; Schwöbel-Patel, 2018; Smeulers et al., 2019; Williams, 2020). On the other hand, the topic remains a niche subject for criminologists, limiting our understanding of the most serious crimes known to mankind.

An intertwined issue for criminology is the examination of the disruptions of pre-existing social order in armed conflict. How does war affect domestic violence, theft, or tax evasion? How do wartime stressors, economic hardship, and weakened institutions shape patterns of ‘ordinary’ crime? Much enthusiasm towards studying and understanding the war–crime nexus was expressed during and post-WWII (Bromberg, 1943; Evjen, 1942), but it has largely been neglected since. To date, little is known about the relationships between instability, insecurity, and harm brought about by armed conflict and the consequences for both ‘everyday’ and serious, organised crime (for some notable exceptions, see e.g. Longworth, 2022; Nikolic-Ristanovic and Stevković, 2016; Pinson, 2022; Valencia and Marin, 2023). Besides shifting crime patterns, states engaged in armed conflict tend to expand their control over populations – declaring states of emergency, militarising society, reviving dormant laws, and creating new offences such as treason, desertion, and wartime collaboration. This has far-reaching consequences to what is conceptualised as a crime and subsequently repressed.

Understanding these transformations requires scholars researching crimes in wartime to move beyond a narrow focus on international crimes and explore the full spectrum of war-related criminality. Such an inquiry demands not only a broader criminological perspective but also interdisciplinary collaboration with legal scholars, sociologists, historians, anthropologists, and others to fully grasp the societal transformations wrought by war. It also calls for a commitment to inclusivity in knowledge production, as envisioned

in the first editorial of the *European Journal of Criminology*: ‘to include contributions from the widest possible range of European countries, both within and beyond the European Union’ (Smith, 2006: 7). The war in Ukraine offers a critical case for examining these transformations and advancing this inclusive agenda.

With this in mind, in this Special Issue, we focus on war and crime in Ukraine – a country still battling an external aggressor, Russia, on European soil. The war has profoundly reshaped Ukraine’s legal system, crime patterns, and state responses, and has mobilised domestic and international scholars’ attention. This Special Issue represents more than an academic endeavour in advancing subject-specific knowledge: by pairing international scholars with Ukrainian counterparts, we sought to amplify domestic expertise and ensure that Ukrainian perspectives are central to the discourse. While this does not resolve systemic inequalities in knowledge production or the dominance of English-language journals in shaping ‘European’ criminology, it takes a step towards dismantling barriers that have historically sidelined certain voices. In the spirit of the 2024 ESC Annual Conference – ‘Criminology Goes East’ – we aim to open doors, transcend borders and boundaries, and create a more equitable scholarly dialogue that challenges the structural imbalances determining whose knowledge counts as ‘European’ criminology.

We must acknowledge that conducting research on war and crime can be a precarious endeavour in post-conflict societies, and it is guaranteed to be so when the conflict is ongoing. Researchers face a range of obstacles: from security risks for themselves and their subjects, to restricted access to people and places, to missing or unreliable data, including dark numbers and destroyed records (Bijleveld, 2023). These challenges are compounded by the personal circumstances of the researchers, who are coping with personal loss and the reality of living through war, not merely studying it from a distance. In the case of Ukraine, researchers face physical displacement, both internally and abroad, destruction of research infrastructure, fragmentation of professional networks and the related psychological consequences (Tsybuliak et al., 2025). Despite these profound difficulties, many demonstrate resilience and renewed purpose in contributing to Ukraine’s recovery through science.

The war-related practical and personal challenges intersect with deeper methodological ones. The development of Ukrainian criminology parallels that of other Eastern European countries, with a primary emphasis on legal and policing studies, predominantly conducted in Ukrainian language to meet the needs of the local audience. Sokurenko (2023) suggests that, despite years of independence, one of the principal challenges facing Ukrainian criminology is the enduring legacy of Soviet traditions, which continues to hinder the implementation of robust methodologies in research. Under the current war conditions, the need to strengthen research transparency, foster deeper international and national collaboration on methodologies, and improve data analysis has become even more pressing. These steps are essential not only to enhance the quality of criminological work but also to amplify the voices of Ukrainian criminologists during these challenging, and transitional, times.

Several contributions to the Special Issue focus on how the context of armed conflict affects patterns of violence and crime at the societal level. Botchkovar et al. (2025) examine intimate partner violence (IPV) in Ukraine, analysing the interaction between war

exposure, stressors, and substance abuse in shaping IPV dynamics. Their findings highlight the importance of considering indirect, vicarious effects of exposure to war, and the chain reactions between war, stress, and negative affect. In a related exploration of shifting social norms, Serdiuk et al. (2025) investigate public support for vigilantism in Ukraine, examining how war impacts citizens' trust in legal institutions and willingness to endorse extrajudicial violence. Drawing on survey data from pre-war and wartime periods, the authors test the Bottoms-Tankebe legitimacy model. While confirming findings from prior legitimacy research in other cultural contexts, they also report an unexpected result: personal experiences of police corruption were associated with *lower*, rather than higher, support for vigilantism. Lozova et al. (2025) examine the quantitative and qualitative trends in illicit drug markets, by focusing on the province of Kharkiv. This study highlights the changes to and the rise in drug-related crime in wartime Ukraine, emphasising the criminogenic pressures that emerge in conflict zones, particularly in areas adjacent to combat zones. Together, these papers illuminate the intersection of war, social disorder, and evolving crime patterns.

Two contributions examine legal and policy responses to war-related criminality. Pysmensky and Holá (2025), for example, analyse Ukraine's recent criminalisation of wartime collaboration, exploring the legal and political complexities of defining and prosecuting such acts. They present the official data, explore the existing practices and identify several problematic issues with the way how collaboration is being criminalised and how the laws are being currently implemented in Ukraine. A study on wartime human smuggling by Khalymon et al. (2025) examines the changed patterns of migration interlinked with the ongoing armed conflict, closure of borders, and the introduction of martial law. By analysing prosecutorial and court data, it reveals changes in the profile of *smugglers* since the full-scale invasion. These studies engage with the challenges of law and law enforcement, in an environment where legal frameworks are contested.

Finally, three contributions explore the transnational dimensions of crime and accountability. Van Baar (2025) discusses corporate involvement in international crimes in Ukraine, drawing on historical cases to explore how businesses navigate wartime legal and ethical dilemmas. Her analysis develops a typology of corporate involvement in international crimes in Ukraine and offers deeper theoretical reflections on why and how corporations become – and remain – engaged in such crimes. Bejinariu and Flanigan (2025) focus on social assistance providers as potential sites for identifying, preventing, and disrupting human trafficking. They highlight the vulnerabilities of Ukrainian refugees in Romania, emphasising the heightened risks of human trafficking in countries unaccustomed to large-scale migration. Finally, Nicolazzo and Anastasio (2025) analyse the enforcement of EU sanctions against Russian individuals and entities through a large-scale analysis of firms controlled by Russian-sanctioned entities across European countries. Their findings illuminate patterns of money laundering, financial crime and sanction circumvention, as well as the challenges of detecting and prosecuting violations of restrictive measures.

Together, these studies expand the criminological lens on war, illustrating the need to move beyond a singular focus on international crimes toward a broader, more nuanced understanding of war's impact on crime and justice. Through empirical and theoretical contributions, therefore, the special issue explores the ways in which war reconfigures

legal norms, state authority, and individual behaviour, demonstrating that war's criminogenic effects extend beyond the most extreme forms of violence, such as war crimes. In these explorations, international and Ukrainian scholars navigated together this shared space of war as both a distant and a lived experience. As such, each paper reflects a unique positionality and an act of epistemic co-creation. By examining both the immediate and long-term consequences of war on social order, legal institutions, and transnational crime, this special issue draws attention to the importance of a criminology of war that is both comprehensive and interdisciplinary.

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